

**REPUBLIC
OF SOUTH AFRICA**



**IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, JOHANNESBURG**

CASE NUMBER: 10274/19

(1) REPORTABLE: NO
(2) OF INTEREST TO OTHER JUDGES:
NO
(3) REVISED
30 November 2021

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SIGNATURE

DATE

In the matter between:

JIYANE,

Plaintiff

MXOLISI

ZIPHOZONKE

and

ROAD

Defendant

ACCIDENT

FUND

Delivered: 30 November 2021 - This judgment was handed down electronically.

JUDGMENT

Karachi AJ:

Introduction

1. The plaintiff, a major male constable was injured in a motor vehicle accident on 29 June 2018. He has instituted a claim for damages against the defendant, the Road Accident Fund ("the RAF").
2. The merits of the claim were conceded 100% in favour of the plaintiff on 11 February 2019.
3. Due to all manner of delays occasioned by the RAF, the RAF's defence was struck out on 27 July 2019 and the issue of quantum proceeded by default. The matter was enrolled for hearing on the default judgment trial court roll on 27 October 2021 and was allocated to me for hearing on 3 November 2021.

The plaintiff's evidence

4. The plaintiff, is a major male constable, born on 4 August 1991.
5. The plaintiff was involved in a motor vehicle collision as a passenger, on 29 June 2018 wherein he sustained various injuries.
6. As a consequence of the injuries sustained, the plaintiff had to undergo medical treatment; will in future have to undergo medical treatment; suffered loss of earnings; and suffered a partial alternatively complete destruction of his income earning capacity.
7. As regards the plaintiff's claim for
 - 7.1. general damages, the RAF failed to exercise an election on whether or not to accept the plaintiff's RAF4 forms and as a result, the plaintiff requests that the court postpone the issue of general damages *sine die*;
 - 7.2. past medical expenses, at the hearing of this matter, counsel on behalf of the plaintiff submitted that the plaintiff has no claim in this regard;

- 7.3. future medical expenses, the plaintiff seeks an order directing the RAF to furnish the plaintiff with an undertaking for future treatment in terms of section 17(4)(a) of the Road Accident Fund Act, 56 of 1996; and
 - 7.4. loss of earnings, the plaintiff claims R6 555 875,00.
8. The plaintiff sustained the following injuries in the accident:
 - 8.1. Head injury with reported loss of consciousness at the scene but fully conscious upon arrival at the hospital;
 - 8.2. Facial laceration – 3 cm on the forehead;
 - 8.3. Cervical spine soft tissue injury;
 - 8.4. Thoracic spine wedge compression T6 fracture;
 - 8.5. Left knee soft-tissue injury.
9. The affidavits of the plaintiff's experts, Prof. Kelly, a neurosurgeon; Mr Rosen, an industrial psychologist; Ms Doran, an occupational therapist; Dr Volkersz, an orthopaedic surgeon; Dr Berkowitz, a plastic and reconstructive surgeon; Dr Samouri, a clinical psychologist; Dr Naidoo, a specialist psychologist and the plaintiff's actuary Mr Kramer were accepted as evidence in the trial.

The experts

(i) Dr Kelly – Neurosurgeon

10. Dr Kelly evaluated the plaintiff and is of the opinion that the plaintiff has a depressive disorder including a mild traumatic brain injury due to the injuries sustained in the accident.
11. Dr Kelly found that